

other acts of a like nature, and may account for the value of the timber and other trees cut down (*or stone quarried*), removed and applied to his own use aforesaid, and that your orator may have such further and other relief as may seem meet.

(*Pray subpoena.*)

Bill to rescind contract.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that on the _____ day of _____ your orator entered into an agreement with C. D., the defendant hereinafter named, for the sale to him of lot number _____ in the _____ concession of the township of _____ in the county of _____ at or for the price or sum of £ _____ payable by _____ equal annual instalments with interest, upon payment whereof a proper conveyance was to be executed of the said premises, by your orator, to the said defendant, and he was in the mean time to be let into possession thereof; which agreement was reduced into writing (*in the form of a bond*) and signed by the said defendant (*or was verbal, and made between the said parties on the day and year aforesaid*), and that the said C. D. accordingly was admitted by your orator, and entered into possession of the said premises, and he has been in possession of the said premises ever since (*or, and remained in possession thereof until _____ when he abandoned the same and departed this Province, and has remained out of the same ever since*) and he has never paid any part of the said purchase money, except the sum of £ _____ which he paid on the _____ day of _____ and has wholly neglected and refused to perform the said agreement, except as aforesaid, although frequently requested thereunto by your orator, who has been always ready and willing, and frequently offered to the said defendant, while he could communicate with him, to perform the same on his part. To the end therefore that the said agreement may be specifically performed within a reasonable time, to be fixed by this honourable Court for that purpose, or in default thereof that the same may be declared to be rescinded and to be at an end, and that the said agreement may be delivered to be cancelled.

(*And for further relief; pray subpoena.*)

By a vendee to rescind contract.

IN CHANCERY.

To the Honourable, &c.

Humbly complaining, &c., your orator, &c., that on the _____ day of _____ your orator entered into

6.
To rescind a contract, by the vendor.

7.
Same by the vendee.